

Court No. - 32

Case :- WRIT - C No. - 24460 of 2018

Petitioner :- Shahina Parveen

Respondent :- U.P. Electricity Regulatory Commission And 3 Others

Counsel for Petitioner :- Ashish Kumar Singh, Ajay Kumar Singh

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Shashi Kant Gupta, J.

Hon'ble Rajiv Gupta, J.

Heard learned counsel for the petitioner, Mr. Mahboob Ahmad, learned counsel for the respondents no. 2 to 4 and perused the record.

This writ petition has been filed for the following relief:

" i. issue an appropriate writ, order or direction in the nature of mandamus directing respondents authorities to issue electricity connection to the tenanted shop of petitioner , situate in house no. CK 67/5,6,7,7-1, Millat Market, Dalmandi Road, Varanasi in accordance with paragraph numbrs 4.4. and 4.5 of the U.P. Electricity Supply Code, 2005, by accepting and processing application of petitioner dated 15.5. 2018(returned in original forthwith)"

Learned counsel for the petitioner submits that the petitioner is residing as a tenant in the aforesaid house and has applied for electricity connection in his own name by filing

requisite application/ form enclosing relevant papers therewith but , without assigning any reason or rhyme , his form has been returned and no electricity connection has been given to him as yet. He further submits that about 100 tenants are residing in the said house and almost 80 tenants have been given electricity connection.

Mr. Mahboob Ahmad, learned Standing counsel appearing on the electricity department submits that if any fresh application/ form is submitted by the petitioner before the respondent no. 3, the same shall be entertained in accordance with law within a stipulated period of time.

Considering the facts and circumstances of the case, this writ petition is finally disposed of with a direction to the petitioner to apply for electricity connection afresh before the Respondent No.2, Executive Engineer, Urban Electricity Distribution Division II Purvanhal Vidyut Vitran Nigam Ltd. Chaukaghat, Varanasi enclosing therewith the relevant papers within two weeks from today along with a certified copy of this order enclosing therewith a copy of the writ petition and its entire Annexures and, if any such application is made, the said authority shall make all endeavours to consider and decide the same in accordance with law by a speaking order within two weeks from the date of receipt of the said application.

Order Date :- 23.7.2018

MLK